

Company Law & Corporate Governance

Subject: Corporate & Business Law | Edition: 2026 Comprehensive Study Module

Statutory Scope: Sec 149 & 166: Duties & Liabilities of Independent Directors, Sec 241-242: Prevention of Oppression & Mismanagement (Tata v

I. OVERVIEW & STATUTORY FOUNDATION

Systematic breakdown of corporate legal personality, Board governance, minority shareholder protection, and independent directors.

II. KEY SECTIONS & REGULATORY FRAMEWORK

- â€¢ Sec 149 & 166: Duties & Liabilities of Independent Directors
- â€¢ Sec 241-242: Prevention of Oppression & Mismanagement (Tata v. Cyrus Mistry)
- â€¢ Sec 135 & Schedule VII: Corporate Social Responsibility (CSR) Framework

III. CORE PRECEDENTS & ADJUDICATORY PRINCIPLES

- â€¢ Tata Consultancy Services v. Cyrus Investments (2021) - Oppression threshold
- â€¢ LIC v. Escorts Ltd. (1986) - Shareholder voting democracy
- â€¢ Miheer Mafatlal (1996) - Supervisory review of M&A schemes

IV. EXAMINATION CHECKLIST & ADVOCACY APPLICATION

- â€¢ Essential definitions, mandatory procedural steps, and jurisdictional thresholds.